

2015 WL 424589 (N.Y.Sup.) (Trial Pleading)  
Supreme Court of New York.  
Bronx County

Walter HUGHES, Plaintiff,  
v.  
THE CITY OF NEW YORK, P.O Martinez, P.O **Ronnie Mejia**  
Tax# 949317 and John Doe Desk Sergeant, Defendants.

No. 0300370-2015.  
January 23, 2015.

**Summons**

Rawlins Law Firm PLLC, [Gary N. Rawlins](#), Esq., Walter Hughes, 80 Broad Street 5th Floor, New York, NY 10004, Tel: (212) 926-0050, Fax (212) 926-0059, for plaintiff.

**To the above named Defendant:**

**You are hereby summoned** to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint

Dated: January 9<sup>th</sup>, 2015 New York, NY

Plaintiff, by his attorney, **GARY N. RAWLINS**, as and for his Verified Complaint, respectfully alleges, upon information and belief:

1. This is a civil litigation action seeking damages against defendants for committing acts under color of law, and depriving plaintiff of rights secured by the Constitution and laws of the United States and using excessive force in violation of Mr. Hughes civil rights. Defendants, while acting in their capacities as Court Officers of the State of New York, deprived Plaintiff of his liberty without due process of law, thereby depriving Plaintiff of his rights, privileges and immunities as guaranteed by the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States. The Court has jurisdiction of this action under [42 U.S.C. § 1983](#), [28 U.S.C. § 1343](#), and [28 U.S.C. § 1331](#).
2. The Plaintiff, **WALTER HUGHES**, at all times herein mentioned was and still is a resident of the County of Bronx and the State of New York.
3. At all times mentioned herein, Defendants **THE CITY OF NEW YORK, P.O. MARTINEZ, P.O. **RONNIE MEJIA** #949317 AND JOHN DOE DESK SERGEANT** at all times herein mentioned were and still are residents of the County of Bronx, State of New York. 4. At all times herein mentioned, Defendants **THE CITY OF NEW YORK, P.O. MARTINEZ, P.O. **RONNIE MEJIA** #949317 AND JOHN DOE DESK SERGEANT** stood in such a relationship with each other in providing law enforcement services under color of law as to make each liable for the acts and omissions of the others.

5. The City of New York is vicariously liable for the acts of Defendants **P.O. MARTINEZ, P.O. RONNIE MEJIA #949317 AND JOHN DOE DESK SERGEANT**.

6. At all times herein mentioned, Defendants **THE CITY OF NEW YORK, P.O. MARTINEZ, P.O. RONNIE MEJIA #949317 AND JOHN DOE DESK SERGEANT** were and still are Officers employed by the State of New York.

**AS AND FOR A FIRST 1983 CAUSE OF ACTION FOR FALSE ARREST  
AND MALICIOUS PROSECUTION AS AGAINST ALL DEFENDANTS IN  
VIOLATION OF PLAINTIFF'S UNITED STATES CONSTITUTIONAL RIGHTS**

7. Plaintiff **WALTER HUGHES** repeats and re-alleges each and every allegation contained in the above paragraphs with full force and effect as if each were more fully set forth herein.

8. Plaintiff **WALTER HUGHES** sues all Defendants in their capacities.

9. On or about February 26<sup>th</sup>, 2012 Claimant Walter Hughes was riding his bicycle proceeding to pass the officer by going around him to continue riding down the block. The officer immediately asked Mr. Hughes to come back. He was given five summons at once and was taken to the precinct. Once Mr. Hughes arrived at the precinct he was approached by police officer Martinez who immediately started sticking his tongue out at him and moving it around toward his chest area. Mr. Hughes told the desk sergeant that these gestures were not appropriate. Officer Martinez continued to make Mr. Hughes feel uncomfortable. P.O **Ronnie Mejia** Tax #949317 then ordered two unknown officers to take Mr. Hughes to a cell where he was forcibly detained. He continued to tell the disk sergeant that police officer Martinez actions were not appropriate. Mr. Hughes then was forced to stay in the cell for four hours with the handcuffs still on.

10. The arrest and detention were unlawful and violated Mr. Hughes' civil rights.

11. At all relevant times, Defendants acted forcibly in apprehending, arresting and imprisoning Plaintiff **WALTER HUGHES**.

12. Prior to February 26, 2012, the State of New York, developed and maintained policies or customs exhibiting deliberate indifference to the constitutional rights of citizens, which caused the violation of Mr. Hughes rights. It was the policy and/or custom of the State of New York to inadequately and improperly investigate citizens' complaints of officer misconduct and actual acts of misconduct; and acts of misconduct were instead tolerated by the State. It was the policy and/or custom of the State of New York to inadequately supervise and train its Court officers, managers and employees including the respondent officers. The agencies did not require appropriate in-service training or re-training of officers and employees who were known to have engaged in misconduct or who had shown a propensity to encourage rule violations for their own convince at the expense of others. 13.

**AND FOR A SECOND CAUSE OF ACTION FOR ASSAULT  
IN VIOLATION OF HIS CONSTITUTIONAL RIGHTS**

14. Plaintiff **WALTER HUGHES** repeats and re-alleges each and every allegation contained above as if fully set forth herein.

15. Defendants **THE CITY OF NEW YORK, P.O MARTINEZ, P.O RONNIE MEJIA TAX #949317 AND JOHN DOE DESK SERGEANT** caused Plaintiff to apprehend and/or fear unfriendly contact.

16. A reasonable person in the same circumstances as Plaintiff would have apprehended and/ or feared unfriendly contact.

17. Defendants **THE CITY OF NEW YORK, P.O MARTINEZ, P.O RONNIE MEJIA TAX #949317 AND JOHN DOE DESK SERGEANT** assaulted Plaintiff in violation of his civil rights.

18. Due to the Defendants' assault, Plaintiff **WALTER HUGHES** is entitled to damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

**AS AND FOR A THIRD CAUSE OF ACTION FOR PUNITIVE**

19. Plaintiffs repeat and re-allege each and every allegation set forth above with the same force and effect as if set forth at length herein.

20. The acts of **THE CITY OF NEW YORK, P.O MARTINEZ, P.O RONNIE MEJIA TAX #949317 AND JOHN DOE DESK SERGEANT** complained of herein were performed with malice and willful intent and are beyond the bounds of a civilized society, especially here where Defendants knew they did not have just cause from the outset to arrest and detain Plaintiff.

21. Plaintiff was caused to sustain serious injuries and to suffer pain, shock, mental anguish, embarrassment, humiliation, anxiety and bodily injury.

22. That as a result of the foregoing, Plaintiff **WALTER HUGHES** seeks punitive damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR FAILURE TO INTERVENE TO PREVENT  
THE VIOLATION OF PLAINTIFF'S CIVIL RIGHTS AS AGAINST ALL DEFENDANTS**

23. Plaintiff **WALTER HUGHES** repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.

24. As a result of the above actions, Defendants, individually, and/or vicariously, by and through its agents, servants and /or employees, and **OFFICERS**, failed to intervene to prevent or end the unlawful conduct inflicted upon Plaintiff **WALTER HUGHES** by defendant **THE CITY OF NEW YORK, P.O MARTINEZ, P.O RONNIE MEJIA TAX# 949317 AND JOHN DOE DESK SERGEANT**.

25. As a result of the foregoing, Defendants **NYC** individually and and/or vicariously by and through their agents servants, and/or employees, and **THE CITY OF NEW YORK, P.O MARTINEZ, P.O RONNIE MEJIA TAX# 949317 AND JOHN DOE DESK SERGEANT** displayed a deliberate indifference to Plaintiff **WALTER HUGHES** rights to be free from unreasonable searches and seizures and excessive use of force.

26. As a result of the foregoing, Defendants **NYC** individually and/or vicariously by and through its agents servants, and/or employees, including **THE CITY OF NEW YORK, P.O MARTINEZ, P.O RONNIE MEJIA TAX#949317 AND JOHN DOE DESK SERGEANT** acted intentionally, willfully, maliciously, with reckless disregard for and deliberate indifference to Plaintiffs rights and physical well being.

27. By reason of the foregoing, Plaintiff sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR INTENTIONAL  
INFLICTION OF EMOTIONAL DISTRESS AGAINST ALL DEFENDANTS**

28. Plaintiff **WALTER HUGHES** repeats and re-alleges each and every allegation contained in paragraphs above with full force and effect as if each were more fully set forth herein.

29. The Defendants, and each of them, acted outrageously for their above-stated roles in the wrongful stop, detainment, charging, failing to investigate, failure to adhere to law, rule and regulations known to them, failing to heed Plaintiff **WALTER HUGHES** protestations, manhandling, false arrest, intimidation and public humiliation of Plaintiff.

30. Said emotional harm was exacerbated by the persistence of Defendants, by maintaining the false claims and criminal charges against the Plaintiff **WALTER HUGHES** without any further investigation of the incident. Defendants knew or had reasons to know that the criminal charges against Plaintiff were false or without merit, yet that they detained and prosecuted Plaintiff with the intention of causing further harm and duress to the Plaintiff.

31. Defendants knew that their conduct would cause severe and extreme emotional harm to the Plaintiff **WALTER HUGHES** and injury to his good name and reputation.

32. Said harm did in fact occur in this case, in that Plaintiff **WALTER HUGHES** was debilitated to the point where he still suffers from episodes of anxiety, anger, loss of sleep, and other impingement of the emotional good health; to the extent that Plaintiff have had to seek support and counseling within the family.

33. By reason of the foregoing, Plaintiff **WALTER HUGHES** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

34. By reason of the foregoing, Plaintiff **WALTER HUGHES** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**WHEREFORE**, Plaintiff demands judgment against the Defendants in each separate cause of action in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter; together with the costs and disbursements of this action.

Dated: New York, New York January 9<sup>th</sup>, 2014

Respectfully Submitted,

Rawlins Law Firm, PLLC

Gary N. Rawlins, Esq.

*Attorneys for Plaintiff*

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